



SUBCONTRACT AGREEMENT NUMBER 90

THIS AGREEMENT is made and entered into this day August 06, 2026, by and between Golden Hands Plumbing Services, a GA L.L.C., hereinafter called the "SUBCONTRACTOR", and Place Services Inc., hereinafter called the "CONTRACTOR". SUBCONTRACTOR and CONTRACTOR are referred to individually as "Party" and collectively as "Parties".

RECITALS

WHEREAS, CONTRACTOR has an agreement (hereinafter called the "MAIN CONTRACT") with Lidl US Operations, LLC, hereinafter called "CUSTOMER", to perform certain work in accordance with the plans and specifications dated 01/16/2026 including Addenda 0 and prepared by Progressive Companies hereinafter called the "ARCHITECT", for the Norcross, GA 1517 Lidl - Ground Up project located at Norcross, GA, herein after called the "PROJECT"; and,

WHEREAS, CONTRACTOR desires to have SUBCONTRACTOR perform a portion of that PROJECT work, hereinafter that portion of work is called the "WORK", and SUBCONTRACTOR desires to perform said WORK.

AGREEMENT

NOW THEREFORE, in consideration of the mutual duties and responsibilities to one another as set forth within and other good and valuable consideration the receipt and sufficiency of which is hereby acknowledged, the Parties agree to be legally bound as follows:

1.0 SCOPE OF WORK

SUBCONTRACTOR agrees to deliver, furnish, install and pay for all materials, labor, scaffolding, equipment, tools, appliances, and everything necessary for the complete execution of the WORK described under the Main Contract and as more fully presented in EXHIBIT "A".

2.0 AGREEMENT AMOUNT

The CONTRACTOR agrees to pay the SUBCONTRACTOR for the performance of the WORK the firm fixed lump sum of One Hundred Fifty Eight Thousand Seven Hundred Thirty Two Dollars and Twenty Cents (\$158,732.20) according to the schedule of values described in EXHIBIT "B".

3.0 SCHEDULE

SUBCONTRACTOR shall perform the WORK in accordance with the requirements of the schedule in EXHIBIT "C" and all revisions and updates thereto. CONTRACTOR has full discretion regarding preparation of the schedule and all revisions and updates to the schedule and each issued schedule shall be a Contract Document.

4.0 GENERAL CONDITIONS

The Parties agree and acknowledge that the duties and obligations of both Parties as well as the WORK to be performed under this Agreement are subject to the General Conditions presented in EXHIBIT "D". The Parties agree that the General Conditions are part of the Contract Documents and this Agreement.

5.0 JOB SPECIFIC REQUIREMENTS

SUBCONTRACTOR shall perform the WORK in accordance with the job specific requirements of the schedule in EXHIBIT "E" and all revisions and updates thereto. The Parties agree that the Job Specific Requirements are part of the Contract Documents and this Agreement.

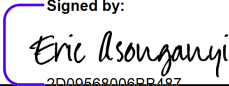
IN WITNESS WHEREOF, the Parties to this Agreement have executed this Agreement as of the Effective Date set forth above.

SUBCONTRACTOR

CONTRACTOR

GOLDEN HANDS PLUMBING SERVICES

PLACE SERVICES, INC.

Signed by: 
Signature: _____
Name: Eric Asonganyi
Title: Eric Asonganyi
Date: 8/14/2026

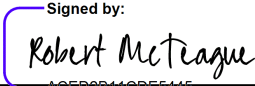
Signed by: 
Signature: _____
Name: Robert McTeague
Title: Project Manager
Date: 8/14/2026

EXHIBIT "A"

SCOPE OF WORK

Reference Only Contract Plans

PAGE NUMBER	DESCRIPTION	DATE
G001-G109	General Drawings	12/17/25
A101-A803	Architectural Drawings	12/17/25
S001-S503	Structural Drawings	12/17/25
M000-M902	Mechanical Drawings	12/17/25
P000-P600	Plumbing Drawings	12/17/25
R0.0-R11.1	Refrigeration Drawings	12/17/25
E000-E607	Electrical Drawings	12/17/25
FA101-FA102	Fire Alarm Drawings	12/17/25
FP000-FP600	Fire Protection Drawings	12/17/25
BMS-000 - BMS-406	BMS Drawings	12/17/25
T000-T600	Technology Drawings	12/17/25
C-0 - C-5	Site Drawings	01/16/26
Z-1 - Z-2	Zoning Drawings	01/16/26
DE-1	Demolition Plan	01/16/26
RELL	Revised Exterior Lighting Layout	10/19/25
TR-1 - TR-12	Traffic Signal Drawings	01/16/26
LS	Boundary and Topographic Survey	03/26/21
ES-1 - ES-5	Erosion Sedimentation Drawings	01/16/26
SS-1 - ST-3	Sanitary Sewer Drawings	01/16/26
C-T	Structure and Pipe Tables	01/16/26
D-1A - D1-B	Site Plan Details	01/16/26
D-2A - D-2B	Grading and Drainage Details	01/16/26
D3A - D-3E	Utility Plan Details	01/16/26
D-4A - D-4D	Erosion Sedimentation and Pollution Control Details	01/16/26
TRP-1 - TRP-3	Tree Replacement Drawings	01/16/26

The list of drawing sheets provided above is for convenience only and does not limit the scope of the Contract Documents.

Subcontractor understands that drawings and specifications indicate the general scope of the Project and thus do not necessarily indicate or describe all work required for the full performance of the Work. This Agreement is executed on the basis of such documents with the understanding that Subcontractor must furnish and install all reasonably inferable items required to properly perform the Work without adjustment to the Subcontract Price. If a dispute occurs between Contractor and Subcontractor over the scope of the Work under the Subcontract Documents, Subcontractor must continue to perform the Work diligently to completion as directed by Contractor, with any dispute to be resolved per dispute provisions within the agreement.

The Subcontractor's Work and Subcontract Price includes, all labor, materials, equipment, services and related items necessary to complete the Plumbing in accordance with the contract documents and as more specifically defined in the "Reference Only Specification Sections" listed below and as clarified thereafter. Enumeration of the Specification Sections is for the convenience of the Contractor and Subcontractor and does not limit Subcontractor's responsibility to provide all of the Work required by the Subcontract Documents except as clarified in Inclusions and Exclusions below.

Reference Only Specification Sections

SECTION	DESCRIPTION	DATE
Division 00	Contract	01/07/26
Division 01	General Requirements	01/07/26
Division 02	Existing Conditions	01/07/26
Division 03	Concrete	01/07/26
Division 04	Masonry	01/07/26
Division 05	Metals	01/07/26
Division 06	Wood And Plastics	01/07/26
Division 07	Thermal And Moisture Protection	01/07/26
Division 08	Openings	01/07/26
Division 09	Finishes	01/07/26
Division 10	Specialties	01/07/26
Division 11	Equipment	01/07/26
Division 12	Furnishings	01/07/26
Division 13	Special Consturction	01/07/26
Division 21	Fire Suppression	01/07/26
Division 22	Plumbing	01/07/26
Division 23	Heating Ventilating And Air Conditioning	01/07/26
Division 26	Electrical	01/07/26
Division 27	Communications	01/07/26
Division 28	Electronic Safety And Security	01/07/26
Division 31	Earthwork	01/07/26
Division 32	Exterior Improvements	01/07/26
Division 33	Utilities	01/07/26

Itemized Scope of Work

- General Requirements – Submittals: Subcontractor expressly agrees to prepare, submit, and obtain approval of all required submittals in accordance with the Contract Documents, plans, specifications, and project schedule within fourteen (14) calendar days of Subcontract execution, unless a shorter period is required by the Contract Documents or project schedule. Subcontractor further agrees to provide written evidence of material and equipment procurement within seven (7) calendar days following approval of the applicable submittal. Such procurement documentation shall include, at a minimum, the purchase order number, supplier or manufacturer acknowledgment and acceptance of the order, confirmation of receipt by the supplier or manufacturer, and the anticipated manufacturing, shipping, and delivery dates. Failure to comply with these requirements may constitute a material breach of this Subcontract and may subject the Subcontractor to any remedies available to Contractor under the Subcontract, including recovery of damages resulting from any delay attributable to Subcontractor's failure to timely submit, procure, or document required materials and equipment.

- General Requirements – Substantial Completion: Subcontractor acknowledges receipt of the Contractor's Substantial Completion Checklist issued with the Invitation to Bid (ITB) and confirms its understanding and acceptance of all substantial completion requirements, whether specifically identified in the Checklist or otherwise required by the Contract Documents. Subcontractor further agrees that timely achievement of all substantial completion milestones and other project milestones is a material obligation under this Subcontract. Any costs, damages, liquidated damages, back charges, delays, or other losses incurred by Contractor as a result of Subcontractor's sole negligence, failure, or delay in meeting such milestones shall be recoverable from and deducted from amounts otherwise due to Subcontractor under this Subcontract, in accordance with Exhibit D and all other applicable provisions of the Subcontract.

- General Requirements - QA Assurance Guidelines: Subcontractor acknowledges receipt of the QA Assurance Guidelines and agrees to comply with all quality assurance, quality control, inspection, testing, documentation, and workmanship requirements set forth therein, as well as all applicable requirements contained within the Contract Documents, plans, specifications, manufacturer recommendations, governing codes, and project standards. Subcontractor shall establish and maintain all necessary quality control procedures to ensure that its work is performed correctly the first time and remains in full compliance throughout the duration of the Project. Subcontractor shall perform all required pre-installation reviews, ongoing quality inspections, corrective actions, testing, and documentation necessary to verify compliance with project requirements. Any deficiencies identified by Contractor, Owner, Architect, Engineer, Authority Having Jurisdiction (AHJ), commissioning agent, or other project stakeholders shall be promptly corrected by Subcontractor at no additional cost to Contractor. Subcontractor further acknowledges that adherence to the QA Assurance Guidelines is a material obligation of this Subcontract. Any costs, delays, rework, failed inspections, rejected work, testing expenses, corrective actions, back charges, liquidated damages, or other losses incurred by Contractor as a result of Subcontractor's failure to adhere to the QA Assurance Guidelines, quality standards, or Contract requirements shall be the sole responsibility of Subcontractor and may be recovered through deduction from amounts otherwise due under this Subcontract or by any other remedy available under the Contract Documents.

- General Requirements – IT Readiness Checklist: Subcontractor acknowledges receipt of the IT Readiness Checklist and agrees to perform all work required to achieve IT readiness in accordance with the Contract Documents and project milestones. Subcontractor shall provide all necessary infrastructure, utilities, controls integration, equipment support, testing, labeling, and documentation required to facilitate installation and operation of IT systems. Subcontractor shall promptly correct any deficiencies identified through readiness reviews or inspections. Any delays, costs, damages, corrective work expenses, or losses resulting from Subcontractor's failure to achieve IT readiness shall be recoverable from the Subcontractor in accordance with the Subcontract Documents.

- General Requirements – Commissioning Playbook, Functional Performance Test (FPT) Sample, BMS FPT Samples, Pre-FPT Commissioning Forms, and Pre-BMS FPT Commissioning Forms: Subcontractor acknowledges receipt of the Commissioning Playbook, Functional Performance Test (FPT) Samples, BMS FPT Samples, Pre-FPT Commissioning Forms, and Pre-BMS FPT Commissioning Forms, and agrees to comply with all commissioning requirements contained therein. Subcontractor shall provide all labor, supervision, documentation, testing support, coordination, corrective actions, training, and participation necessary to successfully complete commissioning and functional performance testing activities in accordance with the project schedule. Subcontractor shall timely complete all pre-functional checklists, startup activities, testing documentation, deficiency corrections, and retesting requirements. Any costs, delays, owner assessments, consultant charges, retesting fees, or damages arising from Subcontractor's failure to satisfy commissioning obligations shall be the responsibility of Subcontractor and may be recovered by Contractor pursuant to the terms of this Subcontract.
- Field Verification and Coordination Drawings – Specialty Subcontractor shall verify all field dimensions prior to fabrication and shall prepare and submit coordination drawings indicating the locations of all utilities, penetrations, and interfacing systems. Coordination drawings must be reviewed and approved by the Contractor before fabrication or installation begins.
- Coordination – Subcontractor shall coordinate with all affected trades to ensure necessary floor recesses, curbs, wall backing, openings, and utility requirements are provided in advance of equipment installation, in accordance with project drawings and manufacturer requirements.
- Fire Rating Compliance – Subcontractor shall ensure that all fabrics, upholstery, wall panels, and other combustible finishes meet the required fire ratings as indicated in the Contract Documents and comply with all applicable codes and standards. Subcontractor shall provide certification or testing documentation as required for verification prior to installation.
- Structural Supports – Subcontractor shall furnish and install all required structural supports, frames, anchors, and embeds necessary for proper installation and operation of the equipment, as indicated in the drawings, specifications, and manufacturer's installation requirements. Subcontractor shall coordinate placement and installation with the Contractor and other affected trades to ensure compliance with project sequencing and tolerances.
- Floor & Wall Preparation – Subcontractor shall verify and, as required, prepare floor and wall surfaces to ensure level, plumb, and finished conditions suitable for equipment installation. Any deficiencies shall be reported to the Contractor prior to installation.
- Noise/vibration control -Subcontractor shall include necessary provisions to install equipment such as Isolation pads, dampers, or enclosures as indicated within manufacturer's requirements and/or construction documents.
- Leveling, Alignment, and Anchoring – Subcontractor shall perform all leveling, alignment, and anchoring of equipment in accordance with manufacturer's requirements, project specifications, and approved shop drawings, ensuring full operational readiness and compliance with tolerances prior to turnover.
- Rigging and Placement – Subcontractor shall provide all rigging, hoisting, and placement services required for equipment installation, including cranes, forklifts, dollies, and other necessary apparatus. Subcontractor is responsible for coordinating access, sequencing, and site logistics with the Contractor to ensure safe and efficient placement without damage to the equipment or surrounding work.
- Fire Suppression Systems – Subcontractor shall coordinate with the Fire Protection Subcontractor for all interfacing systems, including, but not limited to, kitchen hood suppression and other equipment-related fire protection devices, and shall be responsible for proper installation, connection, and compliance with project documents and applicable codes.

- Utility Connections – Subcontractor shall furnish and/or install all required utility connections for the equipment provided under this scope. This includes, but is not limited to: plumbing connections (hot and cold water, drains); as indicated in the contract documents.
- Penetrations – Subcontractor shall be responsible for sealing all mechanical, plumbing, and other penetrations through walls, floors, ceilings, or other assemblies to maintain required environmental, acoustic, fire, cleanroom, or radiation ratings as indicated in the Contract Documents. All sealing materials and methods shall comply with manufacturer requirements, applicable codes, and project specifications, and shall be coordinated with affected trades.
- Plumbing - General - Subcontractor shall furnish all labor, materials, tools, and supervision necessary to provide a complete plumbing system, including water supply, sanitary and storm drainage, backflow prevention, specialty piping, fixtures, valves, and accessories as indicated in the Contract Documents. Subcontractor shall verify field conditions, coordinate all floor, and wall penetrations, and interface with other trades, including specialty equipment installations, to ensure proper connections, clearances, and compliance with applicable codes. Subcontractor shall perform all testing, inspections, and commissioning required to achieve a fully operational system.
- Plumbing - Overhead Coordination - Subcontractor shall coordinate overhead installations to avoid conflicts and maintain clearances as required by the Contract Documents. Routing priority shall generally follow this order unless noted on the Contract Documents, or otherwise directed by the Contractor:
 - o Structure (beams, joists, and structural elements)
 - o Plumbing (Waste Drains and Gravity Dependent Systems)
 - o Main HVAC Ductwork and Equipment
 - o Fire Protection Mains and Branch Lines
 - o Plumbing (Supply Mains and Branch Lines)
 - o Electrical Conduits, Cable Trays, and Lighting
 - o Low Voltage and Specialty Systems
- Plumbing - Gas Piping - Subcontractor shall furnish all labor, materials, equipment, and supervision necessary to install natural gas, propane, and medical gas piping systems as indicated in the Contract Documents. Work includes piping, valves, regulators, supports, connections to equipment, penetrations and any required painting or finishes associated with gas piping. Subcontractor shall perform all required testing, purging, leak detection, and commissioning in accordance with applicable codes, standards, and manufacturer requirements. Coordination with equipment, specialty systems, and other trades is required to ensure proper installation, clearances, and operational readiness.
- Plumbing - Underground Utilities – Subcontractor's Work includes, but is not limited to, trenching, shoring, bedding, compaction, installation of piping, conduits, valves, and appurtenances, as well as surface restoration to match adjacent finishes (pavement, concrete, landscaping, or other surfaces).
- Plumbing - Stub and Connect – Subcontractor shall furnish, install, and stub all piping to the nearest accessible connection point as indicated in the Contract Documents. The Subcontractor responsible for the downstream piping or equipment shall complete the final connection, including fittings, couplings, and sealing. All connection locations, elevations, and types shall be coordinated in advance between subcontractors to ensure proper fit, alignment, and system functionality.

- Plumbing - Grease Trap Connections - Subcontractor shall be responsible for furnishing and installing all piping connections from the grease trap to the building's sanitary sewer system. This includes but is not limited to installation of trap unit, inlet/outlet piping connections to drainage system, and coordination with site Subcontractors as required for installation.
- Plumbing – Commissioning - The Subcontractor shall complete all commissioning activities for systems and equipment it installs, including manufacturer-required start-up, testing, calibration, and performance verification. All work shall comply with manufacturer instructions and project specifications, and required documentation shall be submitted to the Contractor prior to final acceptance.
- Plumbing – Owner Furnished Equipment - Specific installation requirements, including rough-ins, and final utility connections, are defined in the Contract Documents. Each respective MEPF Subcontractor shall be responsible for providing and installing all necessary infrastructure, utilities, and connections required for the proper operation of these Owner-provided items. Coordination between trades is required to ensure compliance with manufacturer requirements and project specifications.
- Furnish and Install Underground Domestic Cold Water Piping Including Excavation, Bedding, Backfill, Valves, Fittings, Risers and Appurtenances
- Furnish and Install Above Ground Domestic Cold Water Distribution Piping Complete with Valves, Fittings, Supports and Connections
- Furnish and Install Domestic Hot Water and Hot Water Return Piping Systems Including Circulation Piping, Valves, Balancing Devices and Accessories
- Furnish and Install Complete Pipe Insulation System for Domestic Water Piping Including 1" Armaflex Insulation
- Furnish and Install Water Service Entrance, 3" Water Meter, Backflow Preventer, Expansion Tank, Water Hammer Arrestors and Associated Water System Accessories
- Furnish and Install Electric Water Heater, Circulation Pump, Temperature Controls, Relief Valves, Drain Pan, Thermometers and Associated Equipment Connections
- Furnish and Install Hose Bibbs, Wall Hydrants, Roof Hydrants, Shutoff Valves, Vacuum Breakers and Associated Trim
- Furnish and Install Complete Lavatory Systems Including ADA Accessories, Carriers, Stops, Supplies and Waste Connections
- Furnish and Install Water Closets Including Flush Valves, Wall Carriers, Trim, Supports and Final Connections
- Furnish and Install Drinking Fountain Including Water, Waste, Vent and Final Utility Connections
- Furnish and Install Hand Sinks, Break Room Sink and Associated Faucets, Disposals, Supplies, Waste and Vent Connections
- Furnish and Install Three Compartment Sink System Including Faucets, Supplies, Waste Piping and Floor Sink Connections
- Furnish and Install Utility Box Connections and Associated Plumbing Rough-In
- Furnish and Install Complete Sanitary Sewer Piping System Including Underground and Above Ground Waste and Vent Piping, Fittings, Risers and Supports
- Furnish and Install Floor Drains, Floor Sinks, Floor Cleanouts, Yard Cleanouts and Vent Through Roof Assemblies
- Install Grease Interceptor Including Inlet and Outlet Piping, Connections and Coordination with Site Utilities

- Furnish and Install Complete Storm Drainage Piping System Including Roof Drain Connections, Storm Piping and Cleanouts
- Furnish and Install Roof Drain System Including Roof Drain Bodies, Piping and Drainage Connections
- Furnish and Install Natural Gas Piping System Including Black Steel Pipe, Fittings, Supports, Valves, Regulators and Equipment Connections
- Furnish and Install Gas Cocks, Shutoff Valves, Pressure Regulators, Strainers, Test Connections and Required Gas Accessories
- Furnish and Install Digital Gas Meter with Pulse Contact Including All Meter Components, Accessories and Hardware
- Provide Labor, Equipment and Material Required for Digital Gas Meter Installation and Startup
- Provide Excavation, Trenching, Sand Bedding, Backfill, Compaction and Restoration for Underground Plumbing Utilities
- Furnish and Install Pipe Hangers, Supports, Sleeves, Couplings, Reducers, Anchors and Miscellaneous Plumbing Accessories
- Provide System Pressure Testing, Leak Testing, Inspection Coordination, Startup and Commissioning for Domestic Water, Sanitary, Storm and Gas Systems
- Provide Final Inspections, Punch List Completion, Record Documents, O&M Manuals and Warranty Documentation

EXHIBIT "B"

SCHEDULE OF VALUES

<u>Task</u>	<u>Cost Code</u>	<u>Acct Group</u>	<u>Description</u>	<u>%</u>	<u>Amount</u>
001	151000	SUB	UG, OH, In-Wall and Finishing F	100	158,732.20

EXHIBIT "C"

SCHEDULE

- Project Start Date: August 17, 2026
- Project End Date: June 18, 2027

SUBCONTRACTOR shall perform the WORK in accordance with the requirements of the Schedule most recently issued by the CONTRACTOR's Project Manager. SUBCONTRACTOR will provide adequate labor to meet the CONTRACTOR's schedule for the SCOPE OF WORK per the project milestones described in the Project Manager's most recently issued Schedule document.

(insert screenshot of schedule)

EXHIBIT "D"

GENERAL CONDITIONS

Article 1 SCOPE OF WORK

SUBCONTRACTOR shall perform the WORK in strict accordance with the contract documents, plans, specifications, drawings and all testing requirements, as applicable. The Work will comply with all applicable federal, state and local codes and regulations and performed in accordance with all applicable safety rules and regulations that may apply to the conditions or as may arise during the performance of the WORK. Provided SUBCONTRACTOR is timely paid all fees due and owing under this AGREEMENT, the WORK shall be delivered free from all liens or claims of laborers, materialmen, suppliers or subcontractors.

SUBCONTRACTOR shall supervise and direct the WORK using its best skill and attention. SUBCONTRACTOR shall be solely responsible for all means, methods, techniques and procedures and for coordinating all portions of the WORK. SUBCONTRACTOR shall cooperate with CONTRACTOR to ensure that the WORK is performed in a timely and efficient manner and in conformity with the CONTRACTOR's requirements. SUBCONTRACTOR shall plan, organize, record and report on the WORK in such a manner as CONTRACTOR may from time to time direct. SUBCONTRACTOR shall carry on the WORK such that no act or omission by the SUBCONTRACTOR shall constitute, cause or contribute to any breach by CONTRACTOR of any of its obligations under the MAIN CONTRACT.

SUBCONTRACTOR agrees that it has had access to, carefully examined and understands the Contract Documents as they are relevant to the WORK. SUBCONTRACTOR has notified CONTRACTOR in writing of all ambiguities, inconsistencies and omissions, if any, in the Contract Documents that relate to the WORK. SUBCONTRACTOR agrees it has adequately investigated the site and is familiar with the conditions and difficulty of the WORK and enters into this AGREEMENT based upon its own examination and evaluation and not on any representations of the CONTRACTOR. SUBCONTRACTOR shall be liable for any added costs or damage resulting from its performance of any WORK involving an error, inconsistency, omission or ambiguity in the CONTRACT DOCUMENTS not reported to the CONTRACTOR prior to execution of the AGREEMENT.

SUBCONTRACTOR shall not subcontract any portion of the WORK without prior written approval from CONTRACTOR. Such approval, if given, does not relieve SUBCONTRACTOR of its responsibilities under this AGREEMENT.

Article 2 CONTRACT DOCUMENTS

The CONTRACT DOCUMENTS consist of the Subcontract Agreement, these General Conditions, the Main Contract and other documents within to the extent applicable to the subject WORK, any modifications and changes to the Main Contract, any modification or changes to this Agreement, and any other documents as identified as applicable to the subject WORK. If the MAIN CONTRACT requires the CONTRACTOR to incorporate certain specific provisions or requirements in the subcontract agreements, SUBCONTRACTOR agrees that all of those provisions or requirements are incorporated into this AGREEMENT. With respect to the WORK, the rights and obligations of SUBCONTRACTOR to the CONTRACTOR are identical to the rights and obligations of the CONTRACTOR to its CUSTOMER. SUBCONTRACTOR assumes and agrees to perform all the obligations and responsibilities of CONTRACTOR under the MAIN CONTRACT

in relation to the WORK and to carry out the same in every respect to the reasonable satisfaction of CONTRACTOR and CUSTOMER.

Article 3 PERFORMANCE OF THE WORK

SUBCONTRACTOR acknowledges that its WORK will be performed in an active construction site which necessarily requires accommodation of temporary inconveniences, interferences, inefficiencies, coordination and resequencing whenever and however such may arise, all being within SUBCONTRACTOR's base scope and WORK without claiming additional time or compensation. Conditions inherent in an active construction site are expected to include difficulties and interruptions in availability and quality of labor, access, lighting and electric power. SUBCONTRACTOR shall not be entitled to payment, damages, monies, or compensation from CONTRACTOR of any kind for direct, indirect or impact damages arising because of hindrance, inefficiency or delay from, any cause whatsoever, whether reasonable or unreasonable, foreseeable or unforeseeable, contemplated or not contemplated, or avoidable or unavoidable, except as otherwise provided herein. CONTRACTOR may require that SUBCONTRACTOR perform WORK in different areas, time or sequences and SUBCONTRACTOR acknowledges that out of sequence WORK and interruptions are inherent in an active construction site and its obligation to coordinate, all being within SUBCONTRACTOR's base scope and WORK without claiming additional time or compensation.

SUBCONTRACTOR shall at all times employ sufficient labor and equipment for prosecuting the WORK to full completion in the manner and time required. If SUBCONTRACTOR fails to employ sufficient labor and equipment, CONTRACTOR may, at its sole option and discretion, (a) direct SUBCONTRACTOR to take necessary actions to improve the rate of progress, including increasing labor force, shifts, overtime, days of work and/or additional equipment or materials; (b) supplement labor and/or equipment and back charge SUBCONTRACTOR the costs thereof; or (c) descope SUBCONTRACTOR's right to proceed with all or part of the WORK with 48 hours written notice.

CONTRACTOR may, at any time, stop or suspend any or all portions of the WORK. Upon notification of a suspension or stoppage, SUBCONTRACTOR shall immediately take such measures necessary to protect the WORK, material and equipment. CONTRACTOR shall compensate SUBCONTRACTOR for additional costs incurred due to the suspension or stoppage in accordance with Article 4 "CHANGE ORDERS" unless the suspension or stoppage was caused or contributed to by the SUBCONTRACTOR.

During any and all disputes or disagreements with the CONTRACTOR or other PROJECT participants, SUBCONTRACTOR shall carry on the WORK and adhere to the PROJECT Schedule.

Article 4 CHANGE ORDERS

SUBCONTRACTOR shall have no claim for additional compensation unless it has provided a request for a change in the scope of work and obtained written approval from an authorized agent of the change from CONTRACTOR before the work is performed (a "Change Order"). Any extra work performed without following this procedure shall be at SUBCONTRACTOR'S sole expense. SUBCONTRACTOR agrees to price all Change Requests within two (2) work days of receipt unless required otherwise by the CONTRACTOR. SUBCONTRACTOR agrees to provide detailed breakdowns of all

associated costs and estimates as may be required by CONTRACTOR. If SUBCONTRACTOR fails to provide pricing within the two (2) work day period, CONTRACTOR at its option, shall determine the pricing which shall then become binding upon the SUBCONTRACTOR. Mark-up of all Change Requests shall not exceed 10% overhead and profit. If the specifications allow a greater or lesser percentage of overhead and profit, the specifications shall be binding upon the SUBCONTRACTOR. The Parties covenant and agree that they will not offer or attempt to offer parol evidence to vary the terms hereof and that such evidence shall not be admissible for any purpose whatsoever. CONTRACTOR's project superintendent shall not have the authority to order, approve, or accept any alterations of any kind of the WORK as shown or contemplated in the CONTRACT DOCUMENTS and SUBCONTRACTOR shall have no claim for any additional WORK, time or changes unless such has been ordered, approved or accepted pursuant to a written authorized agent of CONTRACTOR.

Article 5 PAYMENT

SUBCONTRACTOR's application for payment shall be on a form approved by CONTRACTOR and shall be delivered to CONTRACTOR by the 20th of any month during which SUBCONTRACTOR requests payment. The application for payment shall be based upon the schedule of values in EXHIBIT "B". If the application for payment is not received by the 20th, it will be processed in the next billing cycle. As a condition of payment, CONTRACTOR may require lien waivers from SUBCONTRACTOR and its major suppliers and/or all affidavits that all bills have been paid for work performed and materials supplied through the date of the last payment by CONTRACTOR.

Subject to payment conditions stated herein, after receiving an approved application for payment and within thirty () days of receiving a progress payment from CUSTOMER, CONTRACTOR shall make a proportional progress payment to SUBCONTRACTOR less (a) retainage of ten (10) percent, (b) any other reserve or withholding permitted in this AGREEMENT, and (c) any charges or back-charges for services, material and equipment and other items furnished by CONTRACTOR and chargeable to SUBCONTRACTOR.

The balance of the AGREEMENT amount shall be paid to the SUBCONTRACTOR upon all of the following occurring:

- a) Final completion of SUBCONTRACTOR's work and obligations under this AGREEMENT;
- b) Acceptance of the Work by the CUSTOMER and/or the CUSTOMER's agent, such as the Architect;
- c) SUBCONTRACTOR furnishing to CONTRACTOR satisfactory evidence that all labor and material accounts incurred by SUBCONTRACTOR in connection with his work have been paid in full; and
- d) SUBCONTRACTOR furnishing all As-Built Plans, submittals, warranties, guarantees, instruction manuals, spare parts or extra materials, and other items, as required by the Contract Documents to CONTRACTOR.

No payment to SUBCONTRACTOR shall operate as an approval of SUBCONTRACTOR's Work, or materials, or any part thereof, or a waiver of any obligation of SUBCONTRACTOR with respect to SUBCONTRACTOR's warranty or duty to replace defective Work or other responsibilities of SUBCONTRACTOR under this AGREEMENT. SUBCONTRACTOR expressly waives any rights it may have under any law requiring that funds retained out of contracts for the improvement of real property be paid into an escrow account and held for the benefit of the payee or under any other law with respect to retainages. SUBCONTRACTOR expressly acknowledges that payment to CONTRACTOR by CUSTOMER is a condition precedent to CONTRACTOR's duty to pay SUBCONTRACTOR.

CONTRACTOR's duty to pay is subject to any set-off or other rights of CONTRACTOR under this Subcontract. CONTRACTOR may withhold from any progress or final payment all amounts that are reasonably necessary to protect CONTRACTOR against any or all risks. Should SUBCONTRACTOR be in breach of any other contract with CONTRACTOR, and should that breach not be cured after written notice, CONTRACTOR may terminate this Subcontract or set off money otherwise due SUBCONTRACTOR for damages caused by that breach.

SUBCONTRACTOR agrees and covenants that money received for the performance of this Subcontract shall be used solely for the benefit of the persons or firms supplying labor, materials, supplies, tools, machines, equipment, and/or services exclusively for the WORK or the Project and having the right to assert liens or claims against the land or improvements involved in the WORK, or against any bond or security posted by CONTRACTOR, or in any way against the Project. Any money paid to SUBCONTRACTOR pursuant to this Subcontract shall immediately become and constitute a trust fund for the benefit of said persons and firms, and shall not in any instance be directed by SUBCONTRACTOR to any other purpose, until all obligations arising hereunder have been fully discharged, all claims fully paid, and all final lien waivers obtained and delivered to CONTRACTOR. SUBCONTRACTOR agrees to furnish CONTRACTOR such partial or final releases of claims or waivers of lien as CONTRACTOR may from time to time request. CONTRACTOR at its sole option may issue joint checks.

Article 6 TAXES, PERMITS and APPROVALS

SUBCONTRACTOR will pay all FICA, unemployment, social security and other employment taxes imposed upon it as an employer in connection with the performance of the AGREEMENT, and will furnish evidence, if requested by CONTRACTOR, showing that all such payments required to be made have been paid. SUBCONTRACTOR shall pay all local, state and federal taxes or assessments in connection with the WORK and shall secure and pay all licenses, permits, premiums, and approvals necessary for the WORK.

Article 7 WITHHOLDING

In addition to retainage, payments or portions thereof otherwise due SUBCONTRACTOR may be, but are not required to be, withheld by CONTRACTOR (i) on account of defective WORK not remedied by SUBCONTRACTOR, (ii) when claims are filed or made against the Project or CONTRACTOR arising out of SUBCONTRACTOR's performance of this AGREEMENT or when reasonable evidence indicates the probability of the filing of such claims, including liens, (iii) upon failure of SUBCONTRACTOR to make timely payments for any material or labor, (iv) when a reasonable doubt exists that the AGREEMENT can be completed for the balance then unpaid, or (v) when SUBCONTRACTOR causes damage or losses to the Project or CONTRACTOR, or SUBCONTRACTOR otherwise fails to perform its obligations under this AGREEMENT.

If said causes are not removed or, in CONTRACTOR's sole opinion, adequate corrective action is not taken by SUBCONTRACTOR after fort-eight (48) hours written notice from CONTRACTOR to SUBCONTRACTOR, CONTRACTOR may rectify the same at SUBCONTRACTOR's expense and recover such amount from SUBCONTRACTOR from monies previously withheld, monies due or to become due under this AGREEMENT.

SUBCONTRACTOR grants a first security interest and right of set-off to CONTRACTOR in any unpaid funds or amounts due or to become due to SUBCONTRACTOR whether under this AGREEMENT or other subcontract, to secure SUBCONTRACTOR's obligations to CONTRACTOR, whether under this AGREEMENT or other subcontract.

Article 8 LIENS

Provided SUBCONTRACTOR is timely paid all fees due and owing under this AGREEMENT, SUBCONTRACTOR will save and keep the Project, buildings, and WORK referred to in this AGREEMENT and the lands upon which they are situated free from all mechanic's liens and other liens or claims against any payment bonds by reason of SUBCONTRACTOR's WORK or of any materials, labor, or other things used herein. If SUBCONTRACTOR fails to remove any lien or claim by bonding it or otherwise discharging said lien, after forty-eight (48) hours written notice, by CONTRACTOR, CONTRACTOR may, in addition to all other rights and remedies available to CONTRACTOR, elect to pay the same and all costs (legal or otherwise) incurred by reason thereof, and may pay said lien or liens and costs out of any funds retained or withheld at any time in the hands of CONTRACTOR owing to SUBCONTRACTOR. CONTRACTOR has the right to recover from SUBCONTRACTOR a reimbursement for all costs insured in removing any liens or claim in excess to the amounts due SUBCONTRACTOR.

Article 9 WARRANTY

SUBCONTRACTOR warrants and guarantees that it shall perform all work in a good and workmanlike manner, using the best and highest quality means and methods, in conformity with all applicable laws, building codes, plans and specifications, and manufacturer's standards and recommendations. Should CONTRACTOR require it, SUBCONTRACTOR shall prepare and furnish copies of daily reports reflecting manpower and work performed each day.

SUBCONTRACTOR agrees to promptly make good by replacement or correction, at its sole expense, any defective WORK, any defective materials or workmanship, or any work or material which does not meet the obligations of this AGREEMENT, including the restoration of work of CONTRACTOR or other subcontractors that has been affected thereby. SUBCONTRACTOR agrees to perform the WORK under this AGREEMENT in such a manner that it will protect and not injure or damage any other work performed by CONTRACTOR or any other subcontractor and further agrees to pay CONTRACTOR for any damage that may be caused to such other work by SUBCONTRACTOR. SUBCONTRACTOR further agrees that if it shall cause any stains, blemishes, imperfection, marks or damage of any sort whatsoever, whether to its WORK or the work of the CONTRACTOR or the work of other subcontractors, it will immediately remedy the damage so caused to the satisfaction of CONTRACTOR.

Article 10 NOTICES

All written notices provided for in this AGREEMENT shall be deemed given if delivered in writing personally to a representative of the Party or if sent by email, fax, or by regular mail to the Party at its address herein or to the surety of the Party named herein. Only one such notice shall be required, and any notice given in the manner herein described shall be deemed continuous.

Article 11 TERMINATION**Termination for Default**

If in the opinion of CONTRACTOR, the SUBCONTRACTOR (a) fails to provide sufficient properly skilled workers, supervision or material of proper quality; (b) fails to prosecute the WORK according to schedule; (c) adversely interferes by act or omission with work of CONTRACTOR or any other subcontractor; (d) fails to comply with this AGREEMENT for the Contract Documents; (e) make a general assignment for the benefit of creditors; (f) has a receiver appointed; or (g) becomes insolvent, then, if SUBCONTRACTOR fails to cure such condition within 48 hours of a written notice by CONTRACTOR, CONTRACTOR may, at its option, take steps it deems necessary to overcome the condition without voiding any other provisions of this subcontract and without notice to the sureties and in addition to all other

remedies available under the contract or law. The steps CONTRACTOR may take include (i) supplement forces or correct deficiencies in which case SUBCONTRACTOR is liable to CONTRACTOR for the cost thereof plus ten percent (10%) overhead; or (ii) terminate SUBCONTRACTOR for default on all or part of the WORK.

In the event of a termination for default, CONTRACTOR may: (x) enter the premises and take possession of SUBCONTRACTOR's materials, equipment and/or appliances to complete the WORK; (y) take assignment of any of SUBCONTRACTOR's subcontracts; and/or (z) either itself or through others, complete the WORK by whatever means and method CONTRACTOR deems expedient. In the event of a termination for default, SUBCONTRACTOR is not entitled to any further payment for the defaulted WORK until such WORK is completed and accepted by the CUSTOMER and payment in full is made by the CUSTOMER. At that time, if the unpaid contract balance for the defaulted work exceeds the expense incurred by CONTRACTOR including overhead and profit to complete the defaulted WORK, then SUBCONTRACTOR shall be paid the excess amount. If the expense incurred by CONTRACTOR including overhead and profit to complete the defaulted WORK exceeds the unpaid contract balance for the defaulted work, SUBCONTRACTOR shall pay CONTRACTOR the difference on demand.

Any termination for default under this section that is deemed improper shall be deemed to be a termination for convenience and SUBCONTRACTOR's recovery shall be limited to the amounts provided as such.

Termination for Convenience

CONTRACTOR may at any time after the commencement of the Subcontract terminate the Subcontract or a portion thereof for convenience for any reason whatsoever or no reason at all by sending SUBCONTRACTOR a 48 hour written notice of such termination. Upon receipt of such notice, SUBCONTRACTOR shall stop work immediately and take such steps as necessary to secure the WORK and all unused materials. In the event of such termination, CONTRACTOR shall only be liable to SUBCONTRACTOR for the amount due to SUBCONTRACTOR for the WORK completed in accordance with Article 5 "PAYMENT" and proven demobilization and restocking costs. CONTRACTOR shall not be liable to the SUBCONTRACTOR for any anticipated profit or overhead on the uncompleted portion of the WORK or for any other damage whatsoever.

Article 12 SAFETY AND CONDUCT

The safety of workers is of critical importance to CONTRACTOR; therefore, SUBCONTRACTOR shall initiate, maintain and supervise all safety precautions with respect to the WORK provided for in this AGREEMENT and shall oversee all such safety precautions. In this connection, SUBCONTRACTOR shall take all necessary and reasonable precautions for the safety of all its employees and other persons that the WORK might affect for the safety of all WORK and materials incorporated by it into the project, and for the safety of all property and improvements on the construction site related to the WORK provided for in this Subcontract. SUBCONTRACTOR shall comply with all applicable laws, ordinances, rules, regulations, and orders of any government agency or public authority for the safety of persons or property and all other laws, ordinances, rules, OSHA rules, ADA requirements, regulations, and orders affecting the WORK or the Project. If there are conflicting standards for safety, SUBCONTRACTOR shall always follow the more stringent standard. SUBCONTRACTOR shall attend all safety meetings and shall coordinate its activities with those of the CONTRACTOR and other Subcontractors to ensure that it maintains a safe working environment. SUBCONTRACTOR ACKNOWLEDGES THAT THE OBLIGATION TO ENSURE A SAFE WORKING ENVIRONMENT FOR ITS EMPLOYEES AND THOSE WORKING AROUND ITS EMPLOYEES IS SOLELY THAT OF SUBCONTRACTOR. In the event that CONTRACTOR is cited by OSHA for a violation created and / or

controlled by SUBCONTRACTOR, the cost of defending such citations and any penalties thereunder shall be deducted from sums otherwise payable to SUBCONTRACTOR. If the notice, from CONTRACTOR or regulatory body, of noncompliance, the CONTRACTOR may take necessary action to enforce the requirements including implementing corrective measures without further notice deducting such costs for any amounts due to or to become due to SUBCONTRACTOR or removing employee or equipment in violation from the job site. SUBCONTRACTOR shall follow CONTRACTOR'S site specific rules and regulations.

The CONTRACTOR may require that specific individual(s) working for SUBCONTRACTOR be immediately removed from the project due to performance, unsafe activities, disruption, failure to maintain harmony, discrimination, harassment or any other reason as determined in CONTRACTOR's sole discretion.

All of SUBCONTRACTOR's employees, supplies, and material carriers shall use the gate so designated by CONTRACTOR for their use at this PROJECT.

The SUBCONTRACTOR will make arrangements to remove from the work area and deposit in dumpsters provided by the CONTRACTOR, all debris, cartons, crates, and boxes at the end of each day and at all times keep the building area and premises free from debris and unsafe conditions resulting from the SUBCONTRACTOR's WORK. In addition, the SUBCONTRACTOR will broom clean each work area prior to discontinuing work in the same. If the SUBCONTRACTOR fails to immediately commence clean-up duties within 24 hours after receipt from the CONTRACTOR of written notice of non-compliance, the CONTRACTOR's superintendent shall implement clean-up measure without further notice and deduct the entire cost thereof, plus handling charges from any amounts due or to become due the SUBCONTRACTOR.

SUBCONTRACTOR shall submit to the CONTRACTOR complete shop drawings, data, catalogue cuts and/or samples and one copy of Material Data Sheets (MSDS) for the Work, all in accordance with State and Federal Occupational Safety and Health Administrations as required by the Contract Documents. CONTRACTOR's acceptance or approval of submittals shall not limit or abrogate SUBCONTRACTOR's warranty that the submittals conform to the Contract Documents.

Article 13 TIME IS OF THE ESSENCE

Time is of the essence of this AGREEMENT and any breach of same shall go to the essence thereof, and SUBCONTRACTOR, in agreeing to complete the WORK within the time set forth in this AGREEMENT, has taken into consideration and made allowances for all the hindrances and delays including, but not limited to, weather delays incident to the WORK. SUBCONTRACTOR shall be entitled to an extension of time to complete the work under this Subcontract only if all of the following are satisfied: (i) delays to its WORK are caused by actions of the CONTRACTOR, CUSTOMER or other and are beyond the control of SUBCONTRACTOR, its subcontractors and suppliers, (ii) the delays were not reasonably foreseeable before the contract was entered, (iii) SUBCONTRACTOR provides written notice to CONTRACTOR within forty-eight (48) hours of the first commencement of any delay describing the delay, impact and when delay commenced, and (iv) CONTRACTOR can and has been awarded a time extension for such delay by the CUSTOMER. In the event of any delay, SUBCONTRACTOR shall first work on weekends or overtime before being entitled to any time extension. No time extension or damages may be recovered by SUBCONTRACTOR for weekend or overtime work. SUBCONTRACTOR EXPRESSLY AGREES THAT NO DAMAGES SHALL BE RECOVERABLE FOR ANY DELAYS IN THE WORK, REGARDLESS OF THE CAUSE; THE SOLE REMEDY IS AN EXTENSION OF TIME. Notwithstanding the foregoing, SUBCONTRACTOR shall not be entitled to any extension if CONTRACTOR has not been awarded a similar extension of time by the CUSTOMER.

Article 14 MERGER

All negotiations and agreements prior to the date of this AGREEMENT not included herein are hereby voided. Subcontractor warrants that the entire agreement between SUBCONTRACTOR and CONTRACTOR for the WORK is set forth in this AGREEMENT. This AGREEMENT may be amended or modified only by a written instrument signed by both Parties hereto.

Article 15 INDEMNIFICATION

SUBCONTRACTOR agrees to defend, indemnify and hold harmless CONTRACTOR and the CUSTOMER and their officers, agents, and employees for any damages, losses, expenses, penalties, attorney fees, costs, claims, causes of action, demands and judgments resulting from (i) injury or death to any person, (ii) property damage, (iii) contract claims or (iv) other claims or damages of whatever nature; which injury, death, damage or claim arises out of or results from the execution of the WORK or occurs in connection therewith, or arises out of or results from any act or omission, or is caused or alleged to have been caused by (a) and act or omission, of SUBCONTRACTOR or its officers, agents, subcontractors, suppliers, employees, or those with whom it controls for any part of the Work, (b) a violation of any provision of this Subcontract, or (c) by any act or failure to act contrary to any law, order, citation, rule, regulation, standard or statute whether by SUBCONTRACTOR or anyone directly or indirectly employed, contracted or supervised by SUBCONTRACTOR or anyone for whose acts SUBCONTRACTOR may be liable. This indemnification shall only be applicable to the conduct attributable to SUBCONTRACTOR or anyone directly or indirectly employed, contracted or supervised by SUBCONTRACTOR or by anyone whose acts SUBCONTRACTOR may be liable. SUBCONTRACTOR acknowledges that CONTRACTOR shall have no obligation to supervise SUBCONTRACTOR's work, and if anyone brings suit resulting from conduct of SUBCONTRACTOR, SUBCONTRACTOR will indemnify CONTRACTOR for CONTRACTOR's losses, damages, costs, and legal fees, and from claim of CONTRACTOR's own negligence in supervising SUBCONTRACTOR.

Article 16 INSURANCE

Prior to commencing WORK, SUBCONTRACTOR shall procure and thereafter maintain, at its own cost, until one year following final completion of the WORK or other such time as required by the MAIN CONTRACT, insurance in the form and amounts and from insurers acceptable to CONTRACTOR. Any insurer shall be licensed and authorized to offer such insurance in the state where the WORK is performed and have A.M. Best rating of "A-" or better. Unless MAIN CONTRACT provides differently, SUBCONTRACTOR shall maintain minimum coverage as follows:

- a) Commercial General Liability (CGL) Insurance with a per occurrence limit of not less than \$1,000,000 and a general aggregate limit of not less than \$2,000,000.
- b) Business Automobile Liability Insurance combined single limit not less than \$500,000 each accident.
- c) Workers Compensation Insurance with benefits as required by law in the jurisdiction where the WORK is performed.
- d) Commercial Umbrella Insurance with a per occurrence limit of not less than \$1,000,000 and a general aggregate limit of not less than \$1,000,000.

SUBCONTRACTOR shall furnish a Certificate of Insurance to CONTRACTOR. This insurance shall be primary and shall name CONTRACTOR as an additional insured. This Certificate of Insurance must be returned with this AGREEMENT, and must provide a thirty

(30) day cancellation notice, with notice to CONTRACTOR by SUBCONTRACTOR and the insurer. Should SUBCONTRACTOR fail or neglect to provide said insurance required by this Section, CONTRACTOR shall have the right, but not the obligation, to pay the premiums to maintain said insurance and offset such cost against SUBCONTRACTOR, but failure of CONTRACTOR to exercise such right shall not affect or diminish the obligations of SUBCONTRACTOR under this Subcontract. CONTRACTOR also has the right to recover from SUBCONTRACTOR a reimbursement for any premiums paid by CONTRACTOR in excess of amounts due SUBCONTRACTOR.

SUBCONTRACTOR waives the right of subrogation against CONTRACTOR and / or CUSTOMER for any loss covered by insurance of any type.

Article 17 BONDS

Within thirty (30) days from execution of this AGREEMENT, and if required under the Main Contract or otherwise requested by Contractor, for AGREEMENTS in which the total Agreement Amount equals or exceeds \$100,000, the SUBCONTRACTOR shall furnish a performance bond guaranteeing the faithful performance of one hundred percent (100%) of this AGREEMENT and the completion of the WORK in a skillful and workmanlike manner, and a payment bond guaranteeing one hundred percent (100%) payment of all obligations arising thereunder, in such form and penal sum as the Contractor may prescribe.

The bonds shall be written through an agent and surety licensed to do business in the state of the Project and meeting the following requirements: (i) the Surety must be rated no less than "A-" as to management and no less than "VII" as to strength by the latest edition of Best's Insurance Guide published by A.M. Best Company; (ii) For Federal qualification, the Surety Company executing the bonds shall be on the current list of the U.S. Treasury Department as being approved by and for the writing of bonds for federally funded projects in an amount not less than the penal sum of the bonds provided to the Contractor; (iii) For state, city and local municipality qualification, the Surety Company executing the bonds shall be on the list currently approved by the appropriate state, city or local municipality for the writing of bonds for projects in an amount not less than the penal sum of the bonds provided to the Contractor; and, (iv) The bonding limit of the Surety shall not exceed five percent (5%) of the policyholder surplus (capital and surplus) as listed by the aforementioned Best's Insurance Guide.

Any bond required shall be accompanied by a power of attorney substantiating the agent's authority to execute the bond on behalf of the surety company. The power of attorney shall be certified as being in full force and effect as of the date of the bond. No charge in work, the Agreement Amount, or any time limitation expressed in the AGREEMENT shall release the surety or sureties from their obligations under the bonds.

Article 18 SEVERABILITY

In the event any one or more of the provisions of this AGREEMENT, or any instrument executed and delivered hereunder or pursuant hereto, shall be held to be invalid, illegal or unenforceable in any respect or as to any person or Party by any court or in any arbitration proceeding, the validity, legality and enforceability of the remaining provisions of the AGREEMENT or of any other instrument executed and delivered hereunder or pursuant hereto, and as to all other persons and Parties shall not be affected or impaired thereby.

Article 19 WAIVER

No waiver or breach or default of any provision under this AGREEMENT by CONTRACTOR shall constitute a waiver of any other breach or default of the same or any other provision at any time.

Article 20 CONSEQUENTIAL DAMAGES

In no event shall either Party be liable to the other Party in contract, tort (including negligence or breach of statutory duty) or otherwise, for any special, indirect, consequential, incidental, exemplary or punitive damages under any legal theory of any nature whatsoever, including but not limited to loss of revenue, loss of profit, loss of bonding capacity and loss of business reputation. Nothing in this section shall be deemed to preclude the application of liquidated damages in accordance with the requirements of this AGREEMENT.

Article 21 GOVERNING LAW

This AGREEMENT shall be governed by and interpreted in accordance with the substantive laws of the state where PROJECT is located. Notwithstanding the foregoing, if the contract between CUSTOMER and CONTRACTOR provides that the laws of another state govern, and if CUSTOMER is joined as part of any dispute between CONTRACTOR and SUBCONTRACTOR, then the laws of the State so provided for in the contract between CUSTOMER and CONTRACTOR shall govern this AGREEMENT.

Article 22 DISPUTES

If any claim or dispute shall arise under or related to this AGREEMENT and cannot be settled first through negotiation, the SUBCONTRACTOR and CONTRACTOR agree to then try in good faith to settle the dispute by mediation. The mediation shall be considered non-binding and shall consist of a single mediator agreed upon by both SUBCONTRACTOR and CONTRACTOR. Each Party shall pay one-half of the expense of the Mediation. If the claim or dispute is not settled through mediation, then prior to litigation or at any time during litigation, CONTRACTOR at its sole discretion, can demand arbitration which shall be binding upon the Parties. If so demanded, arbitration shall be conducted by one person agreed to by CONTRACTOR and SUBCONTRACTOR. The written decision of the Arbitrator shall be final and binding on both Parties hereto. Each Party shall pay one-half of the expense of Arbitration. The Parties hereby acknowledge that this AGREEMENT involved interstate commerce and that the agreement to arbitrate any claims or disputes arising under, from or in connection with this AGREEMENT or WORK, may be specifically enforced pursuant to the provisions of and subject to the Federal Arbitration Act which shall supersede any state or local law to the contrary. SUBCONTRACTOR consents to the joinder of any dispute that exists with CONTRACTOR into any pending dispute between CUSTOMER and CONTRACTOR. Notwithstanding anything to the foregoing, if CUSTOMER's contract with CONTRACTOR does not permit arbitration, CONTRACTOR may unilaterally elect to void this arbitration provision and join the claims between SUBCONTRACTOR and CONTRACTOR into any litigation with CUSTOMER.

Article 23 LEGAL FEES

The prevailing Party in any litigation proceeding between the Parties shall be entitled to an award of attorney fees and court costs against the other Party, in addition to the principle amount of damages awarded.

Article 24 ASSIGNMENT

The SUBCONTRACTOR shall not assign, directly or indirectly, by power of attorney or otherwise, its obligations, the whole or any part of the WORK or any of the monies at any time payable under this AGREEMENT without advance written permission of CONTRACTOR.

EXHIBIT "E"

JOB SPECIFIC REQUIREMENTS

- **Cyber Security** - Subcontractor is solely responsible for securing its systems, networks, and devices used in performing this Agreement. The Subcontractor shall implement industry-standard cybersecurity measures and comply with all applicable laws. The Contractor shall have no liability for any loss, damage, or disruption caused by the Subcontractor's failure to maintain adequate security. The Subcontractor shall indemnify and hold the Contractor harmless from any claims, costs, or damages arising from such failure.
- **Employment Eligibility Compliance** - The Subcontractor shall be solely responsible for ensuring that all members of its workforce comply with applicable employment eligibility verification requirements, including completion and maintenance of Form I-9 and participation in the E-Verify program. The Subcontractor shall maintain accurate records to demonstrate compliance and provide such documentation to the Contractor or designated auditor upon request. Should the Subcontractor fail to provide all worker verification documentation required or requested by any auditor within 48 hours of receiving notice thereof, Contractor may terminate this Subcontract, remove Subcontractor from the Project, and pursue any remedy available to Contractor available under Article 11 - Termination for Default. Contractor shall have no liability to Subcontractor for any failure by the Subcontractor to meet these obligations.
- **Weather Contingencies and Protection** - Subcontractor shall incorporate anticipated seasonal weather conditions typical for the project location into its schedule and work plan. No additional time or cost will be granted for normal weather delays. Extensions will only be considered for exceptional weather, as defined in the Contract Documents or, if not defined, by NOAA records showing conditions exceeding the 10-year historical average for that time and location. Subcontractor is responsible for providing and maintaining all necessary weather protection measures (e.g., coverings, heating, cooling, curing protection, and drainage) to safeguard work, materials, and adjacent construction from damage or delay due to weather.
- **Employee Check-In & Site Access** - All Subcontractor employees must comply with site-specific access requirements by completing the check-in process at the start of each shift. At a minimum, this includes - Signing in upon arrival, verifying identity, obtaining and displaying required company or jobsite credentials, and attending the daily safety briefing. Failure to complete the check-in process may result in denial of access or removal from the jobsite.
- **Site Parking** - On-site parking is available; however, each Subcontractor must confirm the number of spaces allocated and designated parking locations with the Site Superintendent prior to arrival. Subcontractors are responsible for adhering to these instructions and arranging alternative parking if additional spaces are needed. If off-site parking is required, all associated costs, passes, badges, and logistics shall be the responsibility of the Subcontractor.
- **Procurement & Storage** – Subcontractor understands early procurement may be required to maintain the project schedule. Subcontractor is responsible for securing and covering all costs related to storage of all materials and equipment, whether off-site or on-site, for as long as required. If onsite storage is utilized, Subcontractor must coordinate with the project team for location, access, and security requirements. All materials shall be stored under cover, at Subcontractor's cost, and kept dry and protected against damage, weather, direct sunlight, surface contamination, corrosion, construction traffic, and other causes. Materials must be neatly stacked to prevent sagging or damage.
- **Cleanup** – In addition to cleanup requirements as described within Exhibit D and elsewhere within this agreement, Subcontractor must maintain clean paved areas on the site free from dirt and debris resulting from Subcontractor's Work or Subcontractor's vehicles. This includes any areas in the public right-of-way and the construction site. Subcontractor must clean areas per local governing official direction and within 24 hours of Contractor's notice.
- **Recycling and Salvage of Materials** – Subcontractor shall not recycle, salvage, or otherwise remove any materials, equipment, or debris from the Project site for reuse, resale, or disposal without the prior written approval of the Contractor. All materials remain the property of the Contractor unless otherwise directed in writing.
- **Motorized Equipment** - All subcontractors are required to coordinate the use of any motorized equipment on-site with the Contractor's superintendent prior to operation. The use of gas-powered equipment within confined areas is prohibited, unless properly planned for, and approved by Contractor.
- **Lifts & Scaffolding** - Each Subcontractor shall provide all lifts, scaffolding, platforms, and access equipment necessary to perform its own work in a safe and efficient manner. Subcontractors are responsible for maintaining their equipment in compliance with OSHA and project safety requirements. Hydraulic equipment shall be equipped with protective "diapers" or absorbent pads to prevent oil leaks and staining of concrete or finished surfaces. Sharing of lifts or scaffolding between trades shall not be assumed unless specifically agreed upon in writing by the Contractor.

- **Schedule, Overtime, and Shift Work** - Subcontractor acknowledges the project schedule and phasing plan as outlined in Exhibit D and this Agreement. The Subcontractor is required to coordinate all work schedules, including any overtime or shift work, with the Contractor's superintendent in advance. All work must comply with applicable laws and Owner/Contractor rules regarding off-hour activities, including but not limited to permitting requirements and noise/dust limitations.
- **Progress Reports** - Subcontractor shall provide written progress reports to the Contractor, describing actual progress of Work as compared to the Schedule of Work. Progress shall include a description of any circumstances encountered by the Subcontractor that would affect the Contract Price or Schedule of Work or otherwise impact this Agreement, the cause of such problems, any estimated length of delay, and any corrective action required and an update of the critical path activities.
- **Submittals** – As outlined in Exhibit D, all vendors and specialty equipment suppliers shall prepare and submit product data, shop drawings, and coordination details in accordance with the Contractor's submittal process and schedule requirements, even if such submittals are not customary for their trade. Submittals shall include dimensional data, utility requirements, rough-in locations, and installation instructions necessary for coordination with other trades. Failure to comply with the GC's submittal process may result in delays for which the vendor and associated Subcontractors shall be responsible.
- **Shop Drawings** – As outlined in Exhibit D, the Subcontractor shall provide fully engineered shop drawings as required by the Contract Documents and any applicable Authorities Having Jurisdiction (AHJ). All shop drawings must be prepared, sealed, and signed by a professional engineer licensed in the state where the work is being performed. Shop drawings shall be submitted in accordance with the schedule requirements detailed in Exhibit C.
- **Coordination with Other Trades** - Subcontractor shall coordinate its work with other trades to ensure proper sequencing, avoid conflicts, and maintain the project schedule. The Subcontractor must identify interface points and promptly notify the Contractor of any work requiring follow-up by others. All layout, cutting, fitting, and temporary protection necessary for coordination are the Subcontractor's responsibility. Costs resulting from failure to coordinate will be borne by the Subcontractor.
- **Quality** – All work shall be performed in a good and workmanlike manner, consistent with the Contract Documents, manufacturer's recommendations, and applicable codes. The Subcontractor shall comply with all quality assurance requirements, including participation in required mockup reviews, timely submission and approval of submittals, and coordination of pre-cover-up inspections. The Subcontractor shall also support running punch inspections during the course of work and final punch inspections at project completion, promptly addressing any deficiencies identified.
- **ADA Compliance** – Subcontractor shall ensure all installed work meets ADA requirements for mounting heights, clearances, reach ranges, cross slopes, maneuvering space, etc. as shown on the approved drawings and in accordance with applicable codes.
- **Substrate Responsibility** – Subcontractor shall examine all substrates (walls, floors, ceilings, or other surfaces) prior to beginning its Work and shall promptly notify the Contractor in writing of any conditions that are unsuitable for proper installation or application of finishes. Subcontractor is responsible for minor patching, leveling, and surface preparation typically associated with its trade to achieve the finish quality specified. Major substrate repairs, replacement, or correction of deficiencies caused by others shall be performed by the responsible trade under separate scope unless specifically included herein. Commencement of finish work shall constitute acceptance of the substrate by the Subcontractor, and any repairs or corrections required thereafter to achieve the specified finish shall be at the Subcontractor's expense.
- **Third-Party Testing Coordination** – The Subcontractor is responsible for coordinating all required third-party testing related to its scope of work, including but not limited to materials testing, as specified in the Contract Documents. The Subcontractor shall schedule and coordinate such testing in a timely manner to prevent delays and shall provide the Contractor with advance notice of all testing activities. The Subcontractor shall ensure that the Contractor is included in all communications related to testing and shall promptly provide the Contractor with copies of all test reports, results, certifications, and related documentation.
- **Ground Penetrating Radar (GPR) Prior to Excavation** – Any Subcontractor intending to perform excavation, trenching, or other digging activities shall not commence such work without first obtaining and reviewing the Ground Penetrating Radar (GPR) report or equivalent subsurface utility detection documentation from the Contractor. No excavation or subsurface work shall begin until the Subcontractor has reviewed the report and confirmed understanding of the underground conditions.
- **Silica Safety** - The Subcontractor shall ensure its employees are trained to recognize silica-generating activities. Before starting any such work, the Subcontractor must notify the Contractor and provide a written plan that complies with all applicable safety regulations. No silica-related work may begin until the plan is reviewed and acknowledged by the Contractor.
- **Hot Work Safety** – Subcontractors performing any hot work (including welding, cutting, or grinding) shall comply with all applicable project and regulatory requirements. This includes providing advance notice to the Contractor, obtaining required permits, implementing protective measures such as fire-resistant blankets and spark containment, and maintaining a designated fire watch during and after hot work in accordance with NFPA and industry standards.
- **NO OTHER EXCLUSIONS, CLARIFICATIONS, OR QUALIFICATIONS PROPOSED BY SUBCONTRACTOR ARE PART OF THIS AGREEMENT IF NOT EXPRESSLY ENUMERATED ABOVE.**